URN:
99IM0053715

Initial Details Pros Case

18/06/2019

V1

Regina
v
Clark KENT

CROWN PROSECUTION SERVICE

Regina
v
Clark KENT

Charges

CHARGE(S)

Surname: **FLINTSTONE**.....	Custody No.		
Forename(s):**Fred**	First arrest date: ..... URN		
Address: 12 Anywhere Street.....	PPO ☐ YO ☐ A/S No.		
Newtown	M ☐ F ☐ Date of birth	01 01 1862	
.....	Ethnicity Code: PNC 16-point self-determined system		
Postcode: ZZ11 1ZZ.....	Interpreter: language/dialect.....		
Contact telephone number:01234 567890	Name of interpreter		

You are charged with the offence(s) shown below. You do not have to say anything. But it may harm your defence if you do not mention now, something which you later rely on in court. Anything you do say may be given in evidence.

Sequential No.	Charge(s)	CCCJS Offence Code
	Continuation charges: Yes ☐ No ☐	

Reply *(if any)*: .....

.....

Signed (person charged): ..... Signed *(appropriate adult)*:.....

Officer charging Surname: ..... Rank: ..... No. ..... Station: .....

Officer in case Surname: ..... Rank/Job title: ..... No. ..... Station: .....

Charge acepted Surname: ..... Rank/Job title: ..... No. ..... Time: ..... Date: .....

FOR POST-CHARGE UNCONDITIONAL BAIL ONLY *(for all other types of bail use MG4A)*

I understand that I am granted bail and must surrender to the custody of ..... Magistrates' / Youth Court at *(full address)* ..... on ..... time .....

I have been informed that if I fail to do so I may commit an offence and be fined, imprisoned or both.

Signed *(person bailed)*: ..... Signed *(appropriate adult)*: .....

Officer granting: Surname: ..... Rank: ..... No: ..... Time:..... Date: .....

File copy ☐ Court copy ☐ Custody record ☐ Person charged ☐

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Case Summary

POLICE REPORT

URN | | | | |

Defendant 1: Fred FLINTSTONE	Anticipated plea: Guilty
Defendant 2:	Anticipated plea: - select -

1. Summary of the Key Evidence - 'Key evidence' establishes every element of the offence and that the defendant committed the offence with the necessary criminal intent.

- Set out the facts in chronological order, telling the story and covering the 'points to prove'
- The summary must be balanced and fair
- Record address and contact details of civilian witnesses on MG9 (and *all dates to avoid on MG10*).

Key evidence:

Key witness(es) and their role (e.g. eye witness, person providing identity).:

State value of property stolen or damaged (or recovered). See Sec 9 for recording compensation details):

To be, or not to be: that is the question:
Whether 'tis nobler in the mind to suffer
The slings and arrows of outrageous fortune,
Or to take arms against a sea of troubles,
And by opposing end them? To die: to sleep;
No more; and by a sleep to say we end
The heart-ache and the thousand natural shocks
That flesh is heir to, 'tis a consummation
Devoutly to be wish'd. To die, to sleep;
To sleep: perchance to dream: ay, there's the rub;
For in that sleep of death what dreams may come
When we have shuffled off this mortal coil,
Must give us pause: there's the respect
That makes calamity of so long life;
For who would bear the whips and scorns of time,
The oppressor's wrong, the proud man's contumely,
The pangs of despised love, the law's delay,
The insolence of office and the spurns
That patient merit of the unworthy takes,
When he himself might his quietus make
With a bare bodkin? who would fardels bear,
To grunt and sweat under a weary life,
But that the dread of something after death,
The undiscover'd country from whose bourn
No traveller returns, puzzles the will
And makes us rather bear those ills we have
Than fly to others that we know not of?
Thus conscience does make cowards of us all;

And thus the native hue of resolution
Is sicklied o'er with the pale cast of thought,
And enterprises of great pith and moment
With this regard their currents turn awry,
And lose the name of action.--Soft you now!
The fair Ophelia! Nymph, in thy orisons
Be all my sins remember'd.

2. Defendant Interview

- Set out the explanation given by defendant as to **how/why offence happened**: include any **mitigation/remorse** put forward.
- Note any **Special Warnings** given.
- State if no comment made.
- Attach copy of CCTV if shown in the interview **(to file).**

Defendant:

Date of interview:

Interviewing officer(s):

Other person(s) present:

Summary of defendant explanation:

Defendant's response/reaction to CCTV (if 'key evidence' and shown in I/V):

Relevant admissions and their start/finish counter reference times:

3. Non Key Evidence – list witnesses present but not 'key'. State what evidence they contribute e.g. additional eye witness, arresting officer, charging officer; officer seizing CCTV. Record contact details of civilian witnesses on MG9 and dates to avoid on MG10.

Name of non-key witness(es) and their role:

4. Visually Recorded Evidence – CCTV, photos, mobile phone(s). Attach a copy (*identify playback format*). Custody suite CCTV should be included as unused material unless 'key evidence'.

Is there VRE? - select - If 'Yes', does it provide 'key evidence? - select -

Give details of what it shows (whether 'key' or not) and include tape counter reference times for relevant key sections (*i.e. defendant punching victim/kicking window*) .

5. Injuries – a medical statement is **NOT** required unless needed to interpret x-rays or describe injuries not visible to the naked eye. Victim(s)/eye witness/police officer should **describe any visible injuries,** photos should be taken and attached (if not taken.attached, state why).

Description of injuries:

6. Forensic Evidence – fingerprints, drugs evidence (weight, number of wraps,etc.). Include details such as street value and purity as this is essential for sentencing information. State if drugs field tested and by whom. State timescales for a full forensic statement (if required).

7. DIP testing – attach DT2 for prosecutor.

Def. 1: Tested? ☐ Trigger off.: ☐ Result: (pos/neg) - select - Drug: - select -

Def. 2: Tested? ☐ Trigger off.: ☐ Result: (pos/neg) - select - Drug: - select -

8. Application for Order(s) on Conviction – consider applying for an order on conviction, e.g compensation, forfeiture/destruction (see order list).

Defendant:

Order(s) applied for: - select -

9. Application for Compensation – state if an estimate. Attach quotes/receipts if available. An address for compensation **must** be provided on MG6. (*If more than one victim/defendant, list one after the other and give details in the description box).*

Defendant: Victim:

Description of injury/loss and or damage:

Amount of compensation applied for: Has an MG19 been sent to victim?:

10. Other: MG18 (TICs)? ☐ **Pre-cons/cautions attached ?** ☐ **MG6?** ☐

11. Officer's certification: I certify that to the best of my knowledge and belief, I have not withheld any material that might reasonably be expected to undermine the prosecution or might reasonably assist the defence in early preparation of their case, including the making of a bail application. I further certify that relevant material has been recorded and retained in accordance with the CPIA 1996, Code of Practice, as amended.

Name & rank/job title:

Date:

12. Supervisor's certification: The information in parts 1 – 9 is an accurate summary of the available evidence and complies with the DPP's guidance for a Streamlined Process. The file has been built to the required standard.

Name & rank/job title:

Signature:..... Date:

YOU MUST ALWAYS COMPLETE CONDITIONAL CAUTIONING SECTION BELOW.

Defendant: *(if more than one defendant, use additional page)*

Not suitable for conditional caution because - select -

OR

Suitable for conditional caution because custody officer is satisfied:

- There is sufficient evidence to charge the offence and defendant has not denied the offence or raised a defence, and
- Conditions are capable of rehabilitating the offender or for making reparations for the offence, and
- Both the circumstances of the offence and the offender make it appropriate to offer a conditional caution, and
- The offence is one for which a conditional caution can be offered (see Annex A, DPP's Guidance)

Proposed conditions

Condition	Compliance requirements including completion/progress check dates	Supporting evidence
1.		
2.		
3.		
4.		

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Key Witness Statements

STATEMENT/EVIDENCE LIST

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No	Statement(s), deposition(s) and document(s) (other than exhibits)	Statement Date	Page
1	MG11 - Apple		1-4
2	MG11 - Carrot		5-8

0* individual witnesses have been identified from the list above.

*Note that one or more of the statements listed is not associated with a witness and so has not been included in this count

WITNESS STATEMENT

(Criminal Procedure Rules 2011 R27.2, Criminal Justice Act 1967 S9, Magistrates Court Act 1980 S5B)

URN / / /

Statement of: **ADAM APPLE**

Age if under 18: **OVER 18** *(if over 18 insert 'over 18')*

Occupation: **UNEMPLOYED**

This statement (consisting of **2** page(s) each signed by me) is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it, anything which I know to be false, or do not believe to be true.

Signature: Date:22/03/2012

Tick if witness evidence is visually recorded ☐ *(supply witness details on rear)*

My father's family name being Pirrip, and my Christian name Philip, my infant tongue could make of both names nothing longer or more explicit than Pip. So, I called myself Pip, and came to be called Pip.

I give Pirrip as my father's family name, on the authority of his tombstone and my sister - Mrs. Joe Gargery, who married the blacksmith. As I never saw my father or my mother, and never saw any likeness of either of them (for their days were long before the days of photographs), my first fancies regarding what they were like, were unreasonably derived from their tombstones. The shape of the letters on my father's, gave me an odd idea that he was a square, stout, dark man, with curly black hair. From the character and turn of the inscription, "Also Georgiana Wife of the Above," I drew a childish conclusion that my mother was freckled and sickly. To five little stone lozenges, each about a foot and a half long, which were arranged in a neat row beside their grave, and were sacred to the memory of five little brothers of mine - who gave up trying to

Signature:		Signature witnessed by:	

get a living, exceedingly early in that universal struggle - I am indebted for a belief I religiously entertained that they had all been born on their backs with their hands in their trousers-pockets, and had never taken them out in this state of existence.

Ours was the marsh country, down by the river, within, as the river wound, twenty miles of the sea. My first most vivid and broad impression of the identity of things, seems to me to have been gained on a memorable raw afternoon towards evening. At such a time I found out for certain, that this bleak place overgrown with nettles was the churchyard; and that Philip Pirrip, late of this parish, and also Georgiana wife of the above, were dead and buried; and that Alexander, Bartholomew, Abraham, Tobias, and Roger, infant children of the aforesaid, were also dead and buried; and that the dark flat wilderness beyond the churchyard, intersected with dykes and mounds and gates, with scattered cattle feeding on it, was the marshes; and that the low leaden line beyond, was the river; and that the distant savage lair from which the wind was rushing, was the sea; and that the small bundle of shivers growing afraid of it all and beginning to cry, was Pip.

"Hold your noise!" cried a terrible voice, as a man started up from among the graves at the side of the church porch. "Keep still, you little devil, or I'll cut your throat!"

A fearful man, all in coarse grey, with a great iron on his leg. A man with no hat, and with broken shoes, and with an old rag tied round his head. A man who had been soaked in water, and smothered in mud, and lamed by stones, and cut by flints, and stung by nettles, and torn by briars; who limped, and shivered, and glared and growled; and whose teeth chattered in his head as he seized me by the chin.

"O! Don't cut my throat, sir," I pleaded in terror. "Pray don't do it, sir."

"Tell us your name!" said the man. "Quick!"

"Pip, sir."

Signature:		Signature witnessed by:	

"Once more," said the man, staring at me. "Give it mouth!"

"Pip. Pip, sir."

Signature:		Signature witnessed by:	

Statement completed by: CON 4969 DIGGINS No: 4969

Contact Telephone Number: 777 4623

Work Mobile Telephone Number:

Station: WALTON LANE POLICE STATION

Date statement made: 22/03/12

Time statement made: 17.30

Place statement made: Walton lane police station

WITNESS STATEMENT

(Criminal Procedure Rules 2011 R27.2, Criminal Justice Act 1967 S9, Magistrates Court Act 1980 S5B)

URN / / /

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Station: WALTON LANE POLICE STATION

Date statement made: 22/03/12

Time statement made: 17.30

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Key Exhibits

LIST OF EXHIBITS

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No	Exhibit Ref No	Description	Page

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Transcripts ABE interviews

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Streamlined Forensic Reports

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Pre Cons